

Coordinated Justice: The Politics of Prosecution and Policing*

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Abstract

Criminal justice outcomes emerge from the coordinated actions of police and prosecutors, yet these institutions are typically studied in isolation. We lack a theoretical framework for understanding how the strategic incentives of police agencies and elected prosecutors interact to jointly determine enforcement patterns. This paper develops a game-theoretic model in which police choose evidence investment and enforcement allocation while prosecutors set evidentiary standards for charging. The analysis reveals a strategic complementarity between these choices that generates multiple equilibria and institutional path dependence in enforcement regimes. Identical formal policies can sustain sharply different enforcement environments depending on coordination history, and reforms that fail to account for this interdependence may produce null or heterogeneous effects. The framework yields direct implications for the empirical analysis of criminal justice reform, offering guidance for interpreting estimated reform effects.

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When Larry Krasner took office as Philadelphia’s District Attorney in 2018, he changed which cases his office would pursue. He instructed his attorneys to decline a range of low-level charges, to divert others, and to treat most low-level retail theft as a summary offense. Like many other reform prosecutors, Krasner adopted policies that entailed a mix of blanket choices about which kinds of offenses to prioritize and other less formal policies about how much evidence would be necessary to prosecute a crime. Over the ensuing years the changes generated sustained controversy and tension with the Philadelphia Police Department. Yet despite the shift in charging priorities, arrest and conviction rates across the city did not change in a marked way. In March 2025, Krasner’s office partially reversed course, and in November 2025 he was re-elected to a third term.

A similar agenda unfolded in San Francisco. After taking office as District Attorney in 2020, Chesa Boudin similarly narrowed the set of cases his office would pursue, declining to prosecute quality-of-life offenses such as public camping, solicitation, and public urination. As in Philadelphia, these changes that targeted specific kinds of offenses provoked backlash from police officials. However, unlike in Philadelphia, they did coincide with visible changes in enforcement patterns and became a focal point of political contestation. In 2022, Boudin was removed from office in a recall election.

These cases present a puzzle. Prominent reform prosecutors in two large cities adopted broadly similar reforms, yet the system-level consequences diverged sharply. It is tempting to conclude that one reform succeeded and the other failed. I argue instead that the reforms differed less in their content than in how police and prosecutors had been coordinating beforehand, and that this difference has direct consequences for what we can infer from the data. Existing empirical designs treat changes in charging or conviction rates as direct reflections of prosecutorial policy. But if police adjust their behavior in anticipation of how prosecutors will treat cases, those rates conflate the selection of cases into the prosecutorial pipeline with outcomes conditional on entry, and standard designs may misattribute a reform’s effects or miss them entirely. Criminal justice enforcement is the joint product of strategic interaction between prosecutors and police, and much of the politics of criminal justice resides in that interaction.

I develop a theory of criminal justice enforcement as a coordination problem between police and prosecutors. Police identify suspects, collect evidence, and assemble case files, whereas prosecutors have responsibility for and discretion over formal charging decisions, including whether to charge a suspect in the first place. And, they have multiple tools in that process to influence how law enforcement operates. The Krasner and Boudin reforms operated by setting prosecutorial priorities, defining which offenses their offices would pursue. A second, less visible but also consequential, tool is discretion over the evidentiary standard that governs how much evidence a case must contain before the office will pursue it. A core function for prosecutors is to screen a case's evidentiary support via, among other things, corroborating evidence and subjecting decisions to supervisory approval. In this paper, I focus on the evidentiary standard and on how it interacts with the mix of offenses that police bring forward. I model the process by which police allocate effort across areas of law enforcement, and invest in building case files, in anticipation of how prosecutors will treat what they produce. Prosecutors, in turn, set their standards in the shadow of electoral accountability. Thus, prosecutorial standards and police evidence investment serve as strategic complements, and criminal justice enforcement has the structure of a coordination game. Path dependence, equilibrium multiplicity, and reform fragility are then properties of the institutional system itself, not artifacts of measurement or implementation failure.

I highlight three key findings. First, higher charging standards need not reduce conviction rates, because they can affect the selection of cases into the set that prosecutors consider charging in the first place. As a consequence, it need not be that higher prosecutorial standards produce fewer convictions. Second, prosecutorial standards shape police effort and priorities, and they can generate multiple enforcement equilibria that differ in both evidence production and charging behavior. We can therefore observe different enforcement patterns and environments under identical formal policies, as a result of coordination between police and prosecutors. Third, due to equilibrium persistence, reforms may change policy without altering the underlying coordination, and so may bring about no observable change in aggregate outcomes, despite altering the dynamics of the police-prosecutor interaction.

Integrating prosecutors and police as coordinated actors driving law enforcement has direct implications for a large and growing body of empirical scholarship. Research on prosecutorial reform increasingly asks whether police respond to changes in charging policy, and it often treats that response as a threat to identification to be detected and controlled (e.g., Agan, Doleac and Harvey 2023, Ouss and Stevenson 2023), even while a wide range of work points out that the two functions are deeply interdependent (e.g., Richman 2003, Sklansky 2018). However, that work does not establish a framework that characterizes the structure of the interdependence. Similarly, the literature on prosecutorial discretion has largely studied charging while taking the pool of cases as given (e.g., Gordon and Huber 2002, Landes 1971), and the policing literature has largely studied enforcement while taking downstream charging standards as fixed (e.g., Wilson 1968). Studied jointly, each margin turns out to depend on the other in ways that matter for what we can infer from aggregate outcomes such as arrest, charging, and conviction rates (e.g., Agan et al. 2025).

The framework speaks to a growing empirical literature on the effects of prosecutorial reform (e.g., Agan, Doleac and Harvey 2023, Agan et al. 2025, Bandyopadhyay and McCannon 2014, Dobbie, Goldin and Yang 2018, Goncalves and Mello Forthcoming, Pfaff 2017, Soliman 2022) and on police behavior (e.g., Ba et al. 2021, Clark 2024, Eckhouse 2022, Mummolo 2018). The insight here in particular is the articulation of a formal account of how policing and prosecution are jointly determined and what that joint determination implies. Treating criminal justice as an equilibrium outcome of coordinated behavior clarifies why empirical evaluations may yield null or heterogeneous effects, identifies observable regime signatures that distinguish enforcement equilibria, and shows that the tools political scientists use to evaluate reform must account for the coordination dynamics that produce them.

1 Prosecutors and Police

Recent literature has developed two increasingly sophisticated but largely separate research programs on the central actors in American criminal law enforcement. One studies prosecutors:

their unilateral charging authority, the role of electoral accountability in shaping their behavior, and the consequences of their discretion for who is prosecuted and on what terms. The other studies police: their organizational incentives, resource allocation decisions, and the determinants of enforcement patterns. Each tradition has generated important insights, but each also takes as given features of the institutional environment that are, in fact, endogenous to the other actor’s choices. The result is that our theoretical understanding of criminal justice politics is built on a foundation that treats as separate what is, in practice, a single interdependent system.

Prosecutors exercise unilateral formal authority over charging decisions and are directly accountable to the public; police are far less electorally accountable. The literature on prosecutorial discretion emphasizes the consequences of that discretion for who is prosecuted and on what terms (e.g., Barkow 2019, Davis 2007, Gordon and Huber 2009, Landes 1971), and treats electoral accountability as the prosecutor’s primary constraint (e.g., Gordon and Huber 2002). However, these analyses typically assume the distribution of cases a prosecutor handles is exogenously shaped. That assumption is consequential and potentially problematic to the extent that police anticipate and respond to prosecutorial standards, making the pool of cases a prosecutor faces is itself a strategic object.

Prosecutors depend heavily on police, who determine which cases are investigated, what evidence is collected, and how cases are packaged for prosecution (Goldstein 1963, Greenwood, Chaiken and Petersilia 1977, Lee 2020). Prosecutors, unlike police, are politically (typically electorally) accountable for the state of public safety. Via elections prosecutors are subject to reputational pressure, media scrutiny, career concerns, and the latent threat of a challenge which can all affect how they craft policy and make decisions about charging criminal cases. I therefore treat elections as the most visible instance of a more general accountability pressure, and nothing in the analysis turns on that pressure operating through close races.¹

¹Of course, most American prosecutors That accountability is usually described in electoral terms, but most chief prosecutors run unopposed, and local electoral competition is, on its own, weak (Hessick and Morse 2019, Rogers 2023, Wright 2009). What the model requires is not contested elections but political accountability broadly.

On the other hand, research in police behavior and organizations typically assumes that a prosecutor’s downstream charging practices standards are fixed, exogenous features, rather than strategic responses to policing practices (e.g., Goldstein 1963, Goncalves and Mello Forthcoming, Soliman 2022, Wilson 1968). That is consequential because if a policing agency finds it costly to pursue cases that the prosecutor may set aside due to high evidentiary expectations, the agency may simply redirect effort toward categories where it can more easily or reliably produce prosecutable evidence that meets the prosecutorial bar. Similarly, if a prosecutor adopts a more permissive standard, the marginal return to thorough investigation declines, and police may instead prioritize arrest volume over case quality (Forst and Brosi 1977, Pfaff 2017). In this sense, prosecutors use policies and standards as mechanisms of institutional delegation that, in practice, shapes the composition and quality of cases that enter the system without prosecutors exerting direct authority over policing (Sklansky 2018).

While the institutional arrangement between police and prosecutors channels formal authority into practical influence, both the police and the prosecutors still operate in the shadow of a court, where any conviction must ultimately take place. The risk of acquittal and the reputational cost of failed prosecutions constrain the cases a prosecutor can viably charge, making the quality of police-generated evidence a matter of political salience rather than administrative preference (Bandyopadhyay and McCannon 2014, Bibas 2004, Boylan and Long 2005, Eisenstein and Jacob 1977, Nardulli, Eisenstein and Flemming 1988). One question I address below is how the anticipation of the judicial process shapes the interaction between police and prosecutors and, in turn, complicates standard agency-based models of law enforcement. Further, the model I build helps illuminate why political pressure on prosecutors need not translate mechanically into charging outcomes. Because police reallocate effort in anticipation of screening, the mapping from public preferences to enforcement is mediated at every stage by the broader institutional setting that makes up criminal law enforcement (Gordon and Huber 2002, Huber and Gordon 2004, Wilson 1968).

To be sure, recent work has begun to relax these assumptions, examining how police respond to prosecutorial policy (e.g., Agan, Doleac and Harvey 2023, Ouss and Stevenson 2023), but

what remains missing is an account of their joint determination. However, the theoretical literature typically take the set of cases a prosecutor handles as given and focused on optimization within it, including investigative resource allocation and plea bargaining (Baker and Mezzetti 2001), charging under case-level uncertainty (Bjerk 2007), and the objectives prosecutors pursue among federal cases (Glaeser, Kessler and Morrison Piehl 2000), while work on optimal law enforcement (Shavell 1993) models enforcement intensity but not the strategic production of evidence by a separate agency with its own accountability. Treating prosecution and policing as a joint coordination problem uncovers important nuance, including equilibrium multiplicity and institutional path dependence that arises from the strategic complementarity between an electorally accountable principal and a semi-autonomous evidence-producing agency.

2 The Model

I model an institutional setting in which a police agency produces evidence and an elected prosecutor exercises charging discretion under electoral accountability. The model isolates the strategic nature of prosecutorial charging decisions responding to how police produce information and, in turn, how prosecutorial evidentiary standards shape police priorities and investment incentives across different areas of law enforcement. Conceptually, the game is played repeatedly across a large number of cases, but for expositional ease I treat it as a single-period, static model. In the analysis below, I treat equilibrium behavior as generating outcomes over a portfolio of cases.

2.1 Players and sequence of Play

There are two strategic players: an elected prosecutor P and a police agency L . I treat the agency as a single player who moves in two stages. We can conceive of the agency, though, as acting through a commissioner, who sets enforcement priorities, and line officers, who choose investigative effort, under the assumption the two share the agency's objective. There are also two non-strategic actors, a trial court J and a voter V .

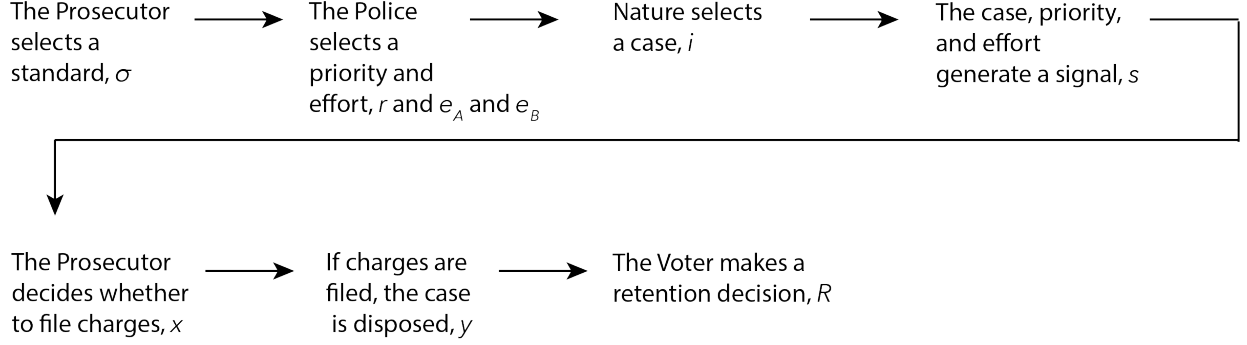


Figure 1: Timing of events in the model

The game entails seven steps. First, the prosecutor commits to an evidentiary standard $\sigma \in \{\text{strict}, \text{lenient}\}$, publicly observed by the agency. Formally, σ is a commitment to a *feasible set of admissible charging rules* $\mathcal{X}_\sigma$ (specified at the charging step below), not to a single rule, which is what lets a strict standard fully determine charging while a lenient standard leaves residual discretion. Second, the commission observed σ and chooses a priority parameter $r \in [0, 1]$ that sets the distribution of cases across activity types, with $\Pr(i = A) = r$ and $\Pr(i = B) = 1 - r$. Third, the line officers observe σ_r and r and then choose evidence investments $e_A, e_B \in [0, \bar{e}]$ subject to a total effort budget $re_A + (1 - r)e_B \leq \bar{B}$; because effort follows the allocation, the commissioner anticipates the officer response when setting r . Fourth, Nature draws the case type i and an unobserved state $\theta \in \{0, 1\}$ with $\Pr(\theta = 1 \mid i) = \pi_i$, where $\theta = 1$ denotes a guilty defendant and $\theta = 0$ an innocent one; whether a guilty defendant is convicted is endogenous, determined below by the evidence and the court. The case file produces a binary signal $s \in \{H, L\}$ with $\Pr(s = H \mid \theta = 1, i, e_i) = \alpha_i(e_i)$ and $\Pr(s = H \mid \theta = 0, i, e_i) = \beta_i(e_i)$, where $\alpha'_i(e) > \beta'_i(e) \geq 0$: more effort raises the chance of a strong file, and more so when the defendant is guilty. The prosecutor observes (i, s) but not θ or e_i . Fifth, the prosecutor selects a charging rule $x : \{A, B\} \times \{H, L\} \rightarrow \{0, 1\}$ from the admissible set fixed by her standard, where $\mathcal{X}_{\text{strict}} = \{x : x(i, H) = 1, x(i, L) = 0\}$ and $\mathcal{X}_{\text{lenient}} = \{x : x(i, H) = 1, x(i, L) \in \{0, 1\}\}$. A strict standard pins down the weak-signal margin; a lenient standard leaves it free, and the prosecutor's choice within $\mathcal{X}_{\text{lenient}}$ is the residual discretion whose interaction with police effort generates the multiplicity analyzed below. Sixth, if $x = 1$ the case proceeds to court and yields

$y \in \{0, 1\}$ ($y = 1$ a conviction), with $\Pr(y = 1 \mid x = 1, \theta, s) = q(\theta, s)$ more likely when the defendant is guilty and the signal is high; q is exogenous and reflects the judicial environment. If $x = 0$ there is no adjudication. Finally, the voter observes coarse aggregate measures of performance over the period's portfolio (convictions, failed prosecutions, declinations) and the announced standard σ , then decides whether to retain the prosecutor, $D \in \{0, 1\}$; I formalize the mapping from performance to retention below. Figure 1 summarizes the timing, and Appendix Table A-1 collects the model objects and their roles.

2.2 Elections and Aggregation

While I model the game at the level of a single case, it is most natural to interpret it as describing a representative case drawn from a larger portfolio of cases that are handled over an election period. In particular, we should not think of the Voter as conditioning reelection on any one case outcome in isolation. Instead, she observes coarse summary measures of office performance (e.g., charging rates, conviction rates, and salient failures) generated by the portfolio.

Let $\Gamma(\cdot)$ map aggregate summary measures of performance into the prosecutor's probability of retention. For expositional convenience, I write Γ as a function of convictions, acquittals, and declinations, though the formal objects are the corresponding election-period rates (or their expectations). Specifically, let

$$\bar{y} \equiv \mathbb{E}[y], \quad \overline{x(1-y)} \equiv \mathbb{E}[x(1-y)], \quad \overline{(1-x)} \equiv \mathbb{E}[1-x],$$

where the expectation is taken over the election-period distribution of cases (induced by r and equilibrium evidence investment). The prosecutor's retention probability is then

$$\Pr(D = 1 \mid \text{history}) = \Gamma\left(\bar{y}, \overline{x(1-y)}, \overline{(1-x)}, \sigma\right).$$

With this technology, it is direct to capture the notion that electoral accountability responds to aggregate prosecutorial outcomes, including cases not prosecuted even while modeling the game as the resolution of a single case. I impose minimal structure on $\Gamma(\cdot)$, so that voters may evaluate performance using either conditional outcomes (e.g., conviction rates among prosecuted cases)

or unconditional outcomes (e.g., conviction or declination rates across all cases). None of the results I report depend on this distinction; a broad class of evaluation rules can support the inferences. Because Γ enters only in reduced form, elections serve only to shape prosecutorial choices, not to determine the underlying prosecutor type.²

All expectations above are taken over the election-period distribution of cases induced by agency choices (r, e_A, e_B) . The priority choice r determines the distribution of cases across categories, while evidence investment determines the distribution of signals within each category. Charging and conviction rates therefore reflect both prosecutorial decisions and the cases police produce. Changes in either rate can be due to a change in how the prosecutor treats a given file or a change in the composition and evidentiary quality of the files that reach the prosecutor. I return to this distinction below.

2.3 Preferences

Prosecutor. I assume the prosecutor values convictions, dislikes losing charged cases, dislikes convicting the innocent, and values holding office. The prosecutor’s per-case payoff is given by

$$U_P = b \cdot y - a \cdot x(1 - y) - \lambda \cdot y(1 - \theta) + \rho \cdot \Pr(D = 1 \mid \text{history}),$$

where $b > 0$ captures the professional and reputational benefit of a conviction, $a > 0$ the reputational cost of a failed prosecution (especially a salient acquittal), $\lambda > 0$ the normative cost of convicting an innocent defendant (the event $y = 1$ while $\theta = 0$), and $\rho > 0$ the value of retention. The parameters b and a measure intrinsic interests that go beyond simply holding office, including professional standing, office morale, and credibility with police and the courts. Electoral accountability affects the prosecutor’s utility through Γ . And, I assume that the source of normative costs is a wrongful conviction, rather than simply to the act of charging. I normalize the payoff from declining to charge to 0.

²Note also this implies a limit on voter sophistication. A strategic voter who updated on the composition of outcomes would induce some evaluation rule, and because the results hold for a broad class of such rules, endogenizing the voter would not overturn the equilibrium behavior characterized below.

Police agency. The police agency values having cases charged (and, optionally, convicted) and incurs costs of (i) allocating enforcement attention across categories and (ii) producing evidentiary files. The agency values charges and convictions as enforcement output rather than conditioning on guilt, consistent with the prominence of arrest and clearance statistics as measures of police productivity. Let $r \in [0, 1]$ denote the induced share of cases in category A . The police agency's expected payoff is

$$\begin{aligned} \mathbb{E}[U_L] = & r \left(v_A \Pr(x = 1 \mid A) + w_A \Pr(y = 1 \mid A) - c(e_A) \right) \\ & + (1 - r) \left(v_B \Pr(x = 1 \mid B) + w_B \Pr(y = 1 \mid B) - c(e_B) \right) - C(r), \end{aligned}$$

where c is increasing and convex and C is convex with an interior minimum. Here $c(e_i)$ is the per-case resource cost of generating evidentiary quality in category i . $C(r)$ measures the organizational cost of *concentrating* enforcement—shifting patrol assignments, standing up or disbanding detective units, and the political frictions of reallocation.

As noted above, L comprises both a commissioner and line officers. The commissioner chooses the allocation r , anticipating officer effort; line officers then choose (e_A, e_B) given r and the budget constraint, $\bar{B}$. The effort budget means there is an interaction between the allocation and effort choices. Because investigative capacity is shared, the effort officers can devote to a case depends on how many cases the commissioner routes into each category. That plays a distinct role from the reallocation cost, $C(r)$, represents the idea that concentrating resources in either category is costly.

3 Analysis

To analyze the model, I first describe the core logic underlying the prosecutor and police agency's decision calculus. I then turn to an equilibrium analysis and the behavioral properties that arise in equilibrium. Section 4 then builds on this characterization to examine coordination, equilibrium selection, and the implications of multiplicity for prosecutorial reform and analysis of the effects of reform.

3.1 The Prosecutor's Charging Condition

The prosecutor's evidentiary standard, σ , is chosen as an ex ante commitment device and applies across cases rather than being chosen case by case. To be incentive compatible, then, a standard must be optimal given the prosecutor's expectations about the portfolio of cases generated by the police response to the standard. Let $\mu_i(s; \sigma)$ denote the prosecutor's posterior belief that a defendant from activity type i is guilty, given the evidentiary signal s and the prosecutor's chosen standard σ . Formally,

$$\mu_i(s; \sigma) \equiv \Pr(\theta = 1 \mid i, s, \sigma) = \frac{\pi_i \Pr(s \mid \theta = 1, i, \sigma)}{\pi_i \Pr(s \mid \theta = 1, i, \sigma) + (1 - \pi_i) \Pr(s \mid \theta = 0, i, \sigma)},$$

where $\pi_i \equiv \Pr(\theta = 1 \mid i)$ is the prior probability that a case of type i involves a guilty defendant. The police agency's equilibrium investment, $e_i(\sigma)$, is determined in equilibrium by the evidentiary standard σ , which is publicly observed. Because the prosecutor does not observe $e_i(\sigma)$, her equilibrium charging decisions are a function of σ , and the induced distribution of signals about cases.

Next, define the per-case *electoral marginal incentive* from charging as

$$\Delta_E(i, s; \sigma) \equiv \rho(\mathbb{E}[\Gamma(\cdot) \mid x = 1, i, s, \sigma] - \mathbb{E}[\Gamma(\cdot) \mid x = 0, i, s, \sigma]).$$

That incentive captures how much more electoral return the prosecutor gets from charging a given case, as opposed to not charging it. It incorporates how the electoral environment rewards or penalizes the act of filing charges, conditional on the evidentiary class of the case and the prosecutor's announced standard.

These objects allow us to characterize the prosecutor's optimal charging condition. For any (i, s) for which charging is permitted by the chosen standard σ , the prosecutor files charges if and only if the expected payoff from charging weakly exceeds the payoff from declination:

$$\begin{aligned} x(i, s; \sigma) = 1 \quad &\Longleftrightarrow \quad b \cdot \Pr(y = 1 \mid x = 1, i, s) - a \cdot \Pr(y = 0 \mid x = 1, i, s) \\ &\quad - \lambda \cdot \Pr(\theta = 0 \mid i, s, \sigma) q(0, s) + \Delta_E(i, s; \sigma) \geq 0, \end{aligned}$$

where $\Pr(y = 1 \mid x = 1, i, s) = \mu_i(s; \sigma) q(1, s) + (1 - \mu_i(s; \sigma)) q(0, s)$.

This charging condition captures the central incentive tradeoff at the heart of the model. The prosecutor weighs the substantive and electoral benefits of a potential conviction against three countervailing forces: the reputational cost of an acquittal, the normative cost of convicting an innocent defendant, and the electoral consequences of filing charges. Importantly, because beliefs about case quality depend on the police response induced by σ , the condition simultaneously determines (a) which evidentiary standards can be sustained in equilibrium and (b) how police investment must adjust to make those standards incentive compatible. As I show in the equilibrium analysis below, these constraints play a central role in shaping police priorities and the existence of distinct equilibria.

3.2 Police priority allocation and effort investments

Consider next the police agency's incentives. Working backwards, line officers choose effort given the allocation, r , and the commissioner then chooses the allocation anticipating that effort. To see how these forces interact, let

$$\Pi_i(\sigma) \equiv v_i \Pr(x=1 \mid i, \sigma) + w_i \Pr(y=1 \mid i, \sigma)$$

denote the police agency's expected per-case gross return from a case in category i under standard σ , evaluated at the equilibrium effort induced by σ .

Officer effort. Given (σ, r) and the budget constraint $\bar{B}$, officers allocate investigative effort across the two categories. An interior effort must satisfy

$$v_i \frac{\partial \Pr(x=1 \mid i)}{\partial e_i} + w_i \frac{\partial \Pr(y=1 \mid i)}{\partial e_i} - c'(e_i) = \mu, \quad i \in \{A, B\},$$

where $\mu \geq 0$ is the marginal value of additional investigative capacity. If capacity is unconstrained, then $\mu = 0$. When the budget binds, officers allocate effort until the net marginal return equals μ in both categories.

The two terms on the left capture the two ways that evidence quality affect L 's utility. First, it raises the probability that the prosecutor files charges (weighted by v_i). Second, it increases

the probability of eventual conviction (weighted by w_i). How much L values each depends on the charging standard, σ . Under a strict standard, charging is sensitive to evidentiary strength, so officers value both terms. Under a lenient standard, the prosecutor charges regardless of signal quality, so $\Pr(x=1 \mid i)$ is approximately invariant to e_i , and the only return to investigation is through its effect on the likelihood of conviction. Further, because strict screening activates the charging channel, it raises the demand for effort. As a result budget is then more likely to bind, and so the shadow value of capacity tends to be higher under strict screening.³

Commissioner priorities. The commissioner chooses r anticipating officer effort. By the envelope theorem, an interior choice satisfies

$$\begin{aligned} & \left[v_A \Pr(x = 1 \mid A, \sigma) + w_A \Pr(y = 1 \mid A, \sigma) - c(e_A) \right] \\ & - \left[v_B \Pr(x = 1 \mid B, \sigma) + w_B \Pr(y = 1 \mid B, \sigma) - c(e_B) \right] - \eta(e_A - e_B) = C'(r). \end{aligned} \quad (1)$$

where $\eta \geq 0$ is the Lagrange multiplier on the investigative-capacity constraint, and therefore measures the marginal value of additional capacity. The first two terms on the left-hand side capture the agency's expected net return from cases in categories A and B , while the last term accounts for the investigative capacity each category requires. What we see here is that the commissioner will shift cases toward category A until its relative return, net of its demand on capacity, equals the marginal cost of reallocation. Because the prosecutor's standard changes these returns and the effort required to produce them, it affects both the evidence police produce and the categories they prioritize.

3.3 Equilibria

To solve the model, I characterize pure-strategy Perfect Bayesian Equilibria (PBE). It will be useful throughout the equilibrium analysis to define the *net marginal gain from charging* a case

³This is a tendency rather than a general inequality.

of type i with signal s under standard σ :

$$\Phi(i, s; \sigma) \equiv b \cdot \Pr(y=1 \mid x=1, i, s) - a \cdot \Pr(y=0 \mid x=1, i, s) - \lambda(1 - \mu_i(s; \sigma))q(0, s) + \Delta_E(i, s; \sigma). \quad (2)$$

By assumption, under any standard, the prosecutor charges when the case file is strong. That assumption imposes constraints on the model parameters to ensure that $\Phi(i, H; \sigma) > 0$, for $i \in \{A, B\}$. What equilibrium can be supported therefore depends on (i) the sign of $\Phi(i, L; \sigma)$ —the net gain from charging a weak-evidence case when such charging is admissible—and (ii) the prosecutor’s (*ex ante*) expectations about payoffs under each standard. For the latter, let $V_P(\sigma) \equiv \mathbb{E}[U_P \mid \sigma, r^*(\sigma), e^*(\sigma)]$ denote the prosecutor’s expected payoff under standard σ , evaluated at the police agency’s best response $(r^*(\sigma), e^*(\sigma))$. For σ to be an equilibrium strategy, then, it must be *ex ante* optimal for the prosecutor—i.e., $V_P(\sigma) \geq V_P(\sigma')$ for $\sigma' \neq \sigma$. (Recall that σ is binary.)

The sign of $\Phi(i, L; \sigma)$ and the prosecutor’s expectations give rise to three distinct types of equilibria. The unscreened equilibrium arises when electoral pressure dominates evidentiary discipline; the screened equilibrium arises when costs of weak prosecutions dominate electoral pressure; and the category-dependent equilibrium arises when cross-domain heterogeneity creates evidentiary discipline only in some domains.

3.3.1 Unscreened Charging Equilibrium

The first type of equilibrium arises when electoral incentives reward visible enforcement (i.e., charging) over evidentiary discipline (i.e., conviction). The prosecutor adopts a lenient standard and charges all cases regardless of evidentiary strength. Anticipating that evidence quality does not affect charging decisions, police underinvest in diagnostic evidence and concentrate enforcement on high-volume categories. This equilibrium involves elevated charging rates, weak responsiveness of charging to case strength, low evidence quality, and a case mix tilted toward categories where large numbers of cases can be generated at low investigative cost.

Proposition 1 (Unscreened charging equilibrium) *Suppose that (a) $\Phi(i, L; \text{lenient}) \geq 0$*

for all $i \in \{A, B\}$ and (b) $V_P(\text{lenient}) \geq V_P(\text{strict})$. Then there exists a PBE in which:

1. the prosecutor adopts $\sigma = \text{lenient}$;
2. charging is unscreened on evidentiary strength: $x(i, H) = x(i, L) = 1$ for all i ;
3. police best-respond in priorities and effort. Because charging does not depend on evidence quality, investigative effort is driven only by the conviction margin, so investment is low. The formal characterization of $r^*(\text{lenient})$ and effort is in Appendix A-4.

The two conditions necessary to support this equilibrium ensure that the prosecutor is willing to accept the consequences of charging weak files for both types of cases and that the prosecutor cannot do better with a strict standard, given the changes in police behavior that standard would induce. Specifically, Condition (a) requires that for each case type, the electoral benefit of charging a weak file exceeds the combined reputational cost of acquittal and normative cost of a wrongful conviction. Condition (b) requires that the prosecutor prefers the portfolio of outcomes under lenient screening—given the police behavior it induces—to those attainable under strict screening with the higher evidence investment strict would elicit. Because charging is not affected by evidence quality, the agency has little reason to expend effort. We should expect, then, that police will not work to collect high-quality diagnostic evidence, and evidentiary signals will be of limited informative value. Section 4 shows why this low-investment environment can be self-sustaining.

3.3.2 Screened Charging Equilibrium

A second type of equilibrium arises when failed prosecutions are politically salient and wrongful charging carries meaningful costs. That incentivizes prosecutors to carefully scrutinize a file to ensure a high likelihood of conviction. The prosecutor commits to a strict standard, filing charges only when the case file is strong. The police agency responds by investing in evidence quality, concentrating effort on cases where investment can reliably produce strong files. Empirically, this equilibrium produces lower charging rates, strong sensitivity of charging to evidentiary strength, higher evidence quality, and a shift toward categories with high investigative productivity.

Proposition 2 (Screened charging equilibrium) *Suppose $V_P(\text{strict}) > V_P(\text{lenient})$. Then there exists a PBE in which:*

1. *the prosecutor adopts $\sigma = \text{strict}$;*
2. *charging is screened on evidentiary strength: $x(i, H) = 1$ and $x(i, L) = 0$ for all i ;*
3. *police best-respond in priorities and effort. Strict screening adds a charging-margin return to investigation, so police invest in evidence quality and reallocate toward categories where strong files can be produced. Effort satisfies*

$$v_i \frac{\partial \Pr(x=1 \mid i)}{\partial e_i} + w_i \frac{\partial \Pr(y=1 \mid i)}{\partial e_i} = c'(e_i) + \mu,$$

where $\mu \geq 0$ is the shadow price of the effort budget; the v_i term is the charging-margin return absent under unscreened charging. The priority choice $r^(\text{strict})$ is characterized in Appendix A-4.*

Strict screening introduces another incentive channel: evidence investment raises the probability that a case clears the charging threshold. The police agency therefore reallocates both investigative effort and case selection toward categories where evidence production is most effective. (Thus, as noted above, optimal effort investment includes the effect it will have on charging.) This is more likely to hold when the reputational cost of acquittals (a) is large, the wrongful-conviction cost (λ) is high, voters penalize failed cases, and the courtroom environment ($q()$) imposes meaningful scrutiny on weak evidence. That is, prosecutors face a tradeoff between inducing police effort but risking not charging cases because the agency did not produce a strong enough file, or risking losing cases because they charge cases with weak evidentiary bases. In effect, the agency shifts from volume-maximizing enforcement toward diagnostic investigation, yielding a pattern of fewer, stronger cases.

3.3.3 Category-Dependent Equilibrium

A final type of equilibrium I consider captures selective toughness. In this equilibrium prosecutorial screening varies across policing domains even though preferences and formal authority are uniform. This equilibrium arises when categories differ in baseline convictability, courtroom scrutiny, or the productivity of evidence investment. This equilibrium has heterogeneous charging thresholds across categories, with evidence quality and sensitivity to case strength

improving only in domains where prosecutorial screening is effective.

Proposition 3 (Selectively screened equilibrium) *Suppose, without loss of generality, that $\Phi(A, L; \text{lenient}) \geq 0$ and $\Phi(B, L; \text{lenient}) < 0$, and that $V_P(\text{lenient}) \geq V_P(\text{strict})$. Then there exists a PBE in which:*

1. *the prosecutor adopts $\sigma = \text{lenient}$;*
2. *charging is unscreened in category A and screened in B: $x(A, H) = x(A, L) = 1$, $x(B, H) = 1$, $x(B, L) = 0$;*
3. *police invest weakly in category A and strongly in category B. The formal characterization of r^* and effort is in Appendix A-4.*

In this kind of equilibrium, we have uniform priority allocation but differentiated investment: police tilt enforcement toward the permissive domain (where charges will be filed even in the context of a weak file) while concentrating investigative resources where prosecutorial screening rewards evidence quality. Residual discretion under $\sigma = \text{lenient}$ then generates differential screening across categories. Importantly, this differential treatment does not require inconsistent preferences or discretionary favoritism; it is rational optimization in an environment where the marginal return to evidentiary discipline varies across domains.

3.4 Equilibrium Selection and Multiplicity

Unsurprisingly, under some parameter conditions, there are multiple equilibria to the game. Generically, though, the prosecutor's evidentiary standard choice (σ) is unique. Comparing $V_P(\text{strict})$ and $V_P(\text{lenient})$ yields a preferred standard for any given set of parameter values. However, given a lenient standard, there exists a subtle form of multiplicity. Under $\sigma = \text{lenient}$, the prosecutor's commitment permits *but does not require* charging on weak files ($s = L$), and the payoff to charging weak files depends on the evidentiary environment induced by police investment. Equilibrium multiplicity can arise as a result of that residual discretion.

To make this interaction explicit, consider the *lenient continuation game*, the subgame

following the prosecutor's choice of $\sigma = \text{lenient}$. Fix a category i , and let $z \in \{0, 1\}$ denote the prosecutor's discretionary treatment of low-signal cases, with $z = 1$ if $x(i, L) = 1$, and let $e \in [0, \bar{e}]$ denote police evidence investment. Let $\Phi_L(e)$ denote $\Phi(i, L; \text{lenient})$ evaluated at the distribution of case signals caused by e . Given e , the prosecutor charges a low-signal case whenever $\Phi_L(e) > 0$ and declines it when $\Phi_L(e) < 0$. Given z , the police choose e to maximize their expected return net of investigative costs.

The possibility of multiplicity comes from the interaction between these choices. When the prosecutor charges low-signal cases, evidence investment does not affect whether a case is charged. The value to police of investment therefore comes only from its consequences for conviction, producing a relatively low investment level. If $\Phi_L(e)$ is positive at that level, broad charging is optimal and so the low-investment outcome can be sustained in equilibrium. When the prosecutor instead declines low-signal cases, investment is valuable to the police not just because of its effect on conviction but also because it raises the probability that a case produces a high signal and is charged. That makes investment more attractive, comparatively, and so police choose a higher investment level. If $\Phi_L(e)$ is negative at that level, selective charging is optimal and so the high investment outcome can be supported in equilibrium. Thus, the same lenient standard can support both a low-investment, broad-charging equilibrium and a high-investment, selective-charging equilibrium.

Proposition 4 (Multiplicity under lenient screening) *Fix a category i and suppose $\sigma = \text{lenient}$. Let $z \in \{0, 1\}$ denote the prosecutor's discretionary choice to charge low-signal cases, $z = 1 \iff x(i, L) = 1$, and let $e \in [0, \bar{e}]$ denote police evidence investment in that category. Define the prosecutor's low-signal net gain $\Phi_L(e) \equiv \Phi(i, L; \text{lenient})$, where the posterior $\mu_i(L; \text{lenient})$ is computed at the signal distribution induced by e . Let $BR_P(e)$ be the prosecutor's best-response correspondence for z , and let $BR_L(z)$ be the police best-response correspondence for e .*

Assume:

- (i) (Monotone incentives) $\Phi_L(e)$ is strictly decreasing in e .
- (ii) (Investment complementarity) For any $e \in BR_L(0)$ and any $e' \in BR_L(1)$, we have $e \geq e'$, with strict inequality for interior solutions.
- (iii) (Crossing) $\Phi_L(\min BR_L(1)) > 0$ and $\Phi_L(\max BR_L(0)) < 0$.

Then the lenient continuation game admits at least two PBE-consistent fixed points (z, e) :

1. a low-investment, broad-charging *fixed point* with $z = 1$ and $e \in BR_L(1)$; and
2. a high-investment, selective-charging *fixed point* with $z = 0$ and $e \in BR_L(0)$.

Proposition 4 isolates the coordination logic that drives the results I describe in the next section. In particular, it implies that identical formal standards within the lenient regime can be associated with different effective screening and evidentiary environments. Thus, across a wide range of substantive settings, a lenient formal prosecutorial standard can involve either selective screening and its associated pattern of police investment and resource allocation or an unscreened regime and its associated police effort and resource allocation.

4 Coordination and Institutional Path Dependence

I now turn from characterizing the equilibria to describing their implications for reform. Central to this analysis is the potential for multiplicity, as it focuses our attention on how history shapes criminal justice reform and how we can interpret empirical analyses of the legal system.

4.1 Comparative statics and equilibrium behavior

To begin, consider how various model parameters determine what kind of equilibrium behavior can be supported. The regimes identified above arise from the interaction of three forces: electoral incentives, the costs of weak prosecutions, and the productivity of police evidence investment. These same forces also determine whether there is a unique or multiple equilibria.

First, recall that a lenient standard (either the unscreened regime or the selective screening regime) requires $\Phi(i, L; \text{lenient}) \geq 0$, for $i \in \{A, B\}$ (unscreened) or $i = A$ (selective screening). Let

$$\mu_i^L = \frac{\pi_i(1 - \alpha_i(e_i^L))}{\pi_i(1 - \alpha_i(e_i^L)) + (1 - \pi_i)(1 - \beta_i(e_i^L))}$$

denote the Prosecutor's belief that a defendant of type i is guilty, given $s = L$. Then, the

conviction probability for that case is given by $Q_i^L \equiv \mu_i^L q(1, L) + (1 - \mu_i^L)q(0, L)$. Thus, the condition for $\sigma = \text{lenient}$ rearranges to

$$(b + a)Q_i^L + \Delta_E(i, L; \text{lenient}) \geq a + \lambda(1 - \mu_i^L)q(0, L), \quad (3)$$

which is a convenient expression for seeing how the model's parameters determine which equilibria can be supported. The comparative statics follow directly, as sign statements about how the incentive to charge weak files responds to primitives. The lenient regime (unscreened or selective) is favored when the electoral incentive to charge and the conviction benefit b are large, and disfavored when the acquittal cost a and the wrongful-conviction cost λ are large; the screened regime has the reverse monotonicity. The selectively screened regime requires cross-category heterogeneity in the primitives and vanishes under symmetry across A and B . And greater diagnostic productivity of evidence, $\alpha_i(e) - \beta_i(e)$, together with greater courtroom sensitivity, $q(1, L) - q(0, L)$, expands the set of primitives supporting screened enforcement. Appendix A-3 states these comparative statics formally and unpacks the three channels: electoral incentives, the costs of failed or unjustified prosecutions, and the productivity of evidence technology.

The prosecutor's first-mover choice of σ is generically unique, so multiplicity of *regimes* never arises across the strict-lenient boundary; the knife-edge $V_P(\text{strict}) = V_P(\text{lenient})$ is a measure-zero set of primitives. Multiplicity occurs instead within a lenient charging regime, leaving the prosecutor discretion over weak files that interacts with police investment. Given the conditions in Proposition 4 are satisfied, both an unscreened (or selective) equilibrium and a high-investment, selective-charging equilibrium can exist. (I give the full partitioning of the parameter space into unique equilibrium regions and regions of multiplicity in Appendix A-3).

4.2 Strategic complementarity and institutional path dependence

The crossing condition of Proposition 4 defines a region in which a low-investment, broad-charging equilibrium and a high-investment, selective-charging equilibrium coexist under the same lenient standard.

The mechanism follows from Condition (3). Under the monotonicity condition in Proposi-

tion 4, higher police investment makes a low signal more diagnostic of innocence and reduces the prosecutor’s return to charging the case. When investment is low, broad charging is optimal. Broad charging in turn removes the charging-margin return to evidence, inducing police to maintain low investment. When investment is high, selective charging is optimal. The prosecutor’s screening of cases increases the incentive for the police to invest in evidence, because investment raises the probability that a case produces a chargeable high signal. Because it is the charging rules that shape the equilibrium, inherited expectations can sustain coordination that persists after a reform if that reform leaves the previous fixed point still viable. It is in this sense that path dependence comes about from equilibrium multiplicity and allows reform to produce no observable change in outcomes or behavior.

4.3 Screening, reallocation, and reform

This coordination logic interacts with the cross-category priority mechanism emphasized above. Under strict screening, evidence investment affects not only conviction probability but also the probability of being charged, which increases the marginal return to investigative effort in categories where evidence is productive. The result is a reallocation in which changing from a lenient to a strict standard induces the police to shift effort toward categories in which evidence investment more strongly raises the probability of charging.⁴ This reallocation of effort across areas of enforcement means that changing charging standards can directly shape the set of cases that police produce for prosecution in the first place. Empirically this means that even if a reform tightens formal standards, police behavior and observed outcomes may remain similar if the reform does not shift which of the two fixed points the system coordinates on.

Those observations in turn have direct bearings on empirical analyses of prosecutorial reform and its effects on the criminal justice system. For example, Agan et al. (2025) find that the election of reform prosecutors leads to reduced charging and conviction rates in misdemeanor cases without a similar effect in felony cases. Mitchell et al. (2022) document evidence that selecting a reform prosecutor leads to reduced racial disparities in who is charged with a crime.

⁴I show this formally in Proposition 9 in Appendix A-4.

Further, this finding has immediate implications for the nascent literature that examines how police priorities and enforcement efforts respond to expectations about how suspected criminals will be treated in later stages of the criminal justice system (e.g., Goncalves and Mello Forthcoming, Soliman 2022). In all of these instances, our inferences from empirical relationships between policy reform and policing and prosecutorial decisions are complicated by the coordination dynamic that drives equilibrium selection.

4.4 Reform with and without change

First consider reform without observed change. In this situation, we have persistence of behavioral patterns that is due to multiplicity of equilibria that remains after reform. To state the formal result cleanly, define reform as a parameter shift that affects payoffs or institutions but not necessarily equilibrium selection.

Definition 1 (Reform as a parameter shift) *Let ω denote the relevant primitives (e.g., $a, \lambda, \rho, \Gamma, \{\alpha_i, \beta_i\}$, the effort budget $\bar{B}$, and the reallocation cost C). A reform is a shift $\omega \rightarrow \omega'$. Let $\mathcal{E}(\omega)$ denote the set of PBE under primitives ω .*

Under this definition, reform might be thought of as any change in the players' preferences or the technology that maps police effort into case files. Recall from above that the prosecutor's choice of charging standard is generically unique, because the model parameters determine whether $V_P(\text{strict}) > V_P(\text{lenient})$. Thus, reform in the sense of a formal change in policy requires a change in these primitives.

Proposition 5 (Reform may not change observed outcomes under equilibrium persistence)

Fix a category i and suppose that under ω the lenient continuation game sustains two equilibria: a low-investment/broad-charging equilibrium $(z, e) = (1, e_L)$ and a high-investment/selective-charging equilibrium $(z, e) = (0, e_H)$ with $e_H > e_L$.

Consider a reform $\omega \rightarrow \omega'$ such that:

- (i) both fixed points remain PBE-consistent under ω' (i.e., both remain in $\mathcal{E}(\omega')$), and*
- (ii) post-reform behavior remains coordinated on the pre-reform fixed point (equilibrium persistence).*

Then the reform need not meaningfully change observed aggregate outcomes (e.g., charging

rates, conviction rates, declination rates), even though primitives have shifted.

Proposition 5 reveals the way in which the model predicts institutional persistence following a formal policy change. Rather than a more standard story about bureaucratic inertia, this result shows that the same fixed point can be supported under different formal charging standards. Specifically,

Proposition 5 reveals the way in which the model predicts institutional persistence following a change in prosecutorial incentives.. Rather than a more standard story about bureaucratic inertia, this result shows that the same fixed point can be supported under different prosecutorial incentives. Marginal increases in a prosecutor’s aversion to wrongful convictions, for example, may still be able to sustain a low investment equilibrium and, if so, then police will have no incentive to shift their behavior simply because the prosecutor has changed. Thus, selecting a more “progressive” prosecutor, who places greater weight on avoiding wrongful convictions, does not necessarily lead to a change in equilibrium policing and charging.

Next, consider when reform *must* bring about behavioral change. The model identifies when reforms should have large, discontinuous effects: when they push the system out of the multiplicity region by eliminating one of the fixed points in Figure A-1.

Proposition 6 (Reforms that eliminate a fixed point generate nonmarginal change)
Fix i and suppose multiplicity obtains under ω as in Proposition 5. If a reform $\omega \rightarrow \omega'$ shifts primitives so that, in the post-reform continuation game, either

$$\Phi'_L(\max BR'_L(0)) > 0 \quad \text{or} \quad \Phi'_L(\min BR'_L(1)) < 0,$$

then the lenient continuation game under ω' admits a unique equilibrium, and equilibrium behavior (and thus aggregate outcomes) must change relative to at least one pre-reform equilibrium.

Proposition 6 reveals a key distinction in types of criminal justice reforms. Some reforms simply *tilt* incentives, whereas others *change the structure of the coordination problem*. Changes in the net expected value from charging a weak case ($\Phi_L(e)$) can be brought about by increasing courtroom scrutiny (sensitivity of q to the state, θ), increasing the electoral penalty for failed prosecutions through Γ , raising the costs a or λ , or improving the diagnostic productivity of evidence production (steepening $\alpha'_i(e) - \beta'_i(e)$). However, due to equilibrium persistence to

affect outcomes, those changes have to be large enough to actually change the equilibrium in order to change observed behavior.

4.5 Reinterpreting existing empirical findings

These theoretical results have direct implications for how we should interpret the kinds of empirical analyses of policing and prosecution that are common in the extant literature. Typical studies investigate how reform affects outcomes such as charging rates and conviction rates. However, as we have seen here, these outcomes are themselves equilibrium phenomena shaped by both prosecutorial screening and police behavior. Thus, we cannot simply attribute variation in those kinds of quantities to prosecutorial policy alone. At a minimum, these outcomes reflect both the selection of cases into prosecution and the distribution of case quality induced by police priorities and evidence investment.

Selection and conditional conviction. First, there is a direct prediction concerning the distinction between the model and the standard empirical approach in which case quality is treated as exogenous. The model predicts that a reform that moves towards stricter evidentiary screening reduces charging rates without decreasing the conviction rate conditional on charge. This is because stricter screening draws charged cases from a stronger pool. By contrast, if case quality is fixed or invariant to the screening standard, then increasing the standard lowers both the charging rate and the conditional conviction rate. This is a prediction that can easily be assessed with the kinds of data that are commonly used in analyses of prosecution and reform (e.g., Agan et al. 2025, Mitchell et al. 2022). To look for evidence consistent with an effect of the screening standard on the mix of cases, we would consider whether the conditional conviction rate changes with a reform.

Heterogeneity across offense categories. The model’s second implication for empirical analysis has to do with how reform’s effects vary across types of offenses, a topic of considerable empirical interest (e.g., Agan, Doleac and Harvey 2023, Agan et al. 2025, Mitchell et al.

2022). In the model, variation in police effort and prioritization across areas of law enforcement arises endogenously (i.e., the category-dependent equilibrium). This is because different kinds of offenses might vary in baseline convictability, courtroom scrutiny, or the productivity of evidence investment. As a result, screening and police effort are concentrated in some areas and not others, and therefore the same reform has different effects across offense types. In brief, the model’s equilibria explicitly predict the kind of heterogeneity that the extant literature examines. And, in doing so, it can shape our empirical investigations by predicting the domains where we should see larger responses to reform—those where evidence investment more strongly increases the probability a prosecutor will file charges.

Divergent reform outcomes. It might be easy or natural to interpret the contrast between Philadelphia and San Francisco, which I described at the start of this paper, as a story of one reform succeeding and another failing. However, the model I develop here offers an alternative interpretation. In the model similar formal reforms can yield divergent system-level consequences simply because jurisdictions may have started in different equilibria of the coordination game. That interpretation has a testable implication that distinguishes it from the success-or-failure account. Specifically, the model predicts that pre-reform enforcement patterns, and in particular the pre-reform sensitivity of charging to evidentiary strength, should predict the magnitude of the post-reform response. Indeed, some existing work that examines examining whether police responded endogenously to Philadelphia’s reforms (Ouss and Stevenson 2023) is consistent with that mechanism. That line of work, though, is not designed to be able to test the prediction, which is a valuable direction for future empirical work on the politics of criminal justice reform.

How police respond. To the extent recent empirical work has attended to the endogeneity of police behavior to prosecutorial policy, it typically treats that endogeneity as a threat to identification and devotes analyses to detecting or ruling it out (Agan, Doleac and Harvey 2023, Ouss and Stevenson 2023). From the perspective of the model I develop here, police

responsiveness is itself a structural feature rather than a confound, with theoretical predictions about the nature of that response. The model predicts that police will reallocate enforcement across offense categories toward domains where evidence is productive, and we will observe changes in how they invest in cases within categories related to how the screening standard changes (e.g., Proposition 9). That insight bridges the nascent literature on how police effort responds to expected downstream treatment (e.g., Goncalves and Mello Forthcoming, Soliman 2022) with the literature on prosecutorial reform. What is more, it brings specific predictions to what are typically treated as open-ended robustness questions about the endogeneity of policing.

Across these various empirical reinterpretations, there is a common structure. The various equilibria I study differ not only in average outcomes but also in the structure of enforcement. They differ in how charging decisions respond to a case’s evidentiary strength, how police effort is allocated across categories, and how informative prosecutorial decisions are about underlying legal merit. These are the sources of variation across equilibria that allow us to empirically discriminate among different kinds of equilibria.

Implication 1 (Observable regime signatures) *Across the equilibria regimes, the model predicts:*

1. *The unscreened regime produces high charging rates, weak sensitivity of charging to evidentiary strength, low evidence quality, and case mixes tilted toward high-volume categories.*
2. *The screened regime produces lower charging rates, strong sensitivity to evidence, higher evidence quality, and a shift toward categories with high investigative productivity.*
3. *The category-dependent regime produces heterogeneous charging thresholds across categories, with evidence quality improving only in domains subject to effective prosecutorial screening.*

Implication 1 identifies how we can empirically discriminate among equilibria and also point towards how best to structure measurement for an analysis of reform. The most informative quantities are the sensitivity of charging to evidentiary strength and the allocation of enforcement across categories. These are things that the contemporary empirical literature lends itself to measuring using, for example, information about body-camera-compliance and corroboration indicators, case-file completeness, recorded dismissal reasons, and the composition

of arrests across offense types. And, if that is feasible, then we may very well be feasible to estimate how charging decisions respond to case strength by measuring these kinds of quantities along with charging and conviction outcome.

However, Implication 1 goes further in that it helps interpret various potential null findings. A meaningful reform may nevertheless leave aggregate charging and conviction rates unchanged when the system remains coordinated on a pre-reform equilibrium. That persistence, then, predicts a null effect, rather than casting it as evidence that prosecutorial discretion is inconsequential. What Implication 1 does is help us distinguish persistence from irrelevance. Under persistence, the structure of enforcement is preserved along with the aggregates. Under irrelevance, there is no such structure to preserve.

Of course, there are limits to what these results allow us to infer from data about policing and prosecution. First, the discussion here is about interpretation rather than identification. Simply because we observe patterns consistent with the model's mechanisms does not rule out other possible explanations. Other theories that focus on criminal justices resources or institutional preferences, for example, may yield predictions observationally equivalent with those I outline here. Second, the model's sharpest predictions concern the sensitivity of charging to case strength. But, to the extent that we cannot measure that sensitivity, the model only makes predictions about the direction of the relationship, rather than its magnitude. That having been said, the model's key empirical implication is that it predicts pre-reform enforcement patterns should predict post-reform responses. This is the benefit of conceiving of policing and prosecution as strategic complements.

5 Discussion and Conclusion

Taken together, the analysis here helps recast our understanding of the politics of criminal justice by highlighting the implications of strategic coordination dynamic that arises as a result of the complementary functions that police and prosecutors play.

Strategic interdependence and institutional governance. The most immediate implication from the analysis is that prosecution and policing are jointly determined equilibrium outcomes rather than sequential stages of enforcement. As I have argued, we should understand prosecutorial standards and police evidence production as strategic complements. That means that l authority over charging does not translate mechanically into control over enforcement outcomes.

Three implications of that interdependence bear discussion. First, authority should be decoupled from influence in the way we understand the politics of law enforcement. Prosecutors set charging rules, but police determine the informational environment in which those rules operate. Police confront a particular set of incentives that is shaped by the screening rules prosecutors apply to the cases the police bring to them. In turn, those incentives shape what the prosecutors should infer about police effort and the cases they have to handle. In this sense, policy is jointly produced in equilibrium rather than imposed unilaterally. Where past research emphasizes police influence over their own policies, their lobbying, and their enforcement priorities (e.g., Cheng 2024, Eckhouse 2022, Goncalves and Mello Forthcoming, Mummolo 2018), this model reveals a subtler, systemic channel in which neither actor shapes outcomes unilaterally.

Second, the strategic complementarity between policing and prosecution suggests equilibrium patterns, rather than a simple marginal change in either. Most pointedly, the model reveals that identical formal standards can sustain qualitatively distinct enforcement environments depending on how police and prosecutors coordinate. That has broad implications for policy evaluation and studies of reform effects on system performance and individual welfare (e.g., Agan et al. 2025, Bandyopadhyay and McCannon 2014, Dobbie, Goldin and Yang 2018).

Third, the analysis shows how strategic interdependence can lead to institutional path dependence. This boils down to the possibility that a reform may shift payoffs and incentives but nevertheless leave the coordination problem intact, which implies there may be little or no observable change in behavior. In that sense, stability in enforcement patterns can reflect equilibrium persistence rather than bureaucratic inertia (cf. Sklansky 2018). In short, reforms might fail without failing. More broadly, the model I present here reframes prosecutorial re-

form as a problem of institutional governance in which delegation operates through endogenous information production and control depends on how oversight rules reshape agent incentives upstream. These dynamics are likely to arise in other policy domains where formally accountable principals rely on semi-autonomous agents to generate the information on which policy decisions depend.

Prosecutorial reform is fundamentally a coordination problem. Police resistance to prosecutorial reform is often attributed to differences in preferences about how to treat suspected criminals or tastes for punitiveness. The model highlights a subtler reason. If a prosecutor demands stronger evidence, police are required to engage in costly effort to build stronger files, and even selectively strict standards endogenously shift both the amount of police effort and its allocation across areas of law enforcement.

Future theoretical and empirical research. Several extensions are beyond this paper’s scope. Because police are politically active actors (e.g., Cheng 2024), as the Krasner and Boudin recall and election fights illustrate, a natural next step is to let players anticipate who becomes prosecutor if the incumbent loses. Another is to let potential offenders anticipate the coordination dynamics, endogenizing the mix of cases available for arrest and prosecution.

Finally, the analysis points to a clear agenda for empirical work, developed above. Future research should study how the sensitivity of charging to evidentiary strength responds to reform rather than average treatment effects alone, treat policing as endogenous to prosecutorial policy, and read null or modest reform effects as possible equilibrium persistence rather than the irrelevance of prosecutorial discretion.

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Appendix

A-1 Supplemental Results

Proof of Proposition 1 Take police best responses after each standard, with beliefs computed by Bayes' rule at the induced effort levels. Under leniency, strong files are charged by assumption, and condition (a) makes charging weak files optimal in both categories. Charging therefore does not depend on evidence quality. Police invest only for the conviction return, as characterized in Appendix A-4. Condition (b) makes leniency optimal given these continuations. The resulting strategies and beliefs form a PBE. ■

Proof of Proposition 2 A strict standard requires $x(i, H) = 1$ and $x(i, L) = 0$. Take police best responses after each standard and compute beliefs by Bayes' rule. Under strict screening, investment raises the probability of a strong file and hence of charging, adding the charging return to the effort condition in Appendix A-4. The inequality $V_P(\text{strict}) > V_P(\text{lenient})$ makes the strict standard optimal. These strategies and beliefs form a PBE. ■

Proof of Proposition 3 Under leniency, the prosecutor charges strong files in both categories. The assumed signs of $\Phi(A, L; \text{lenient})$ and $\Phi(B, L; \text{lenient})$ make charging weak files optimal in A and declining them optimal in B . Take police best responses to this rule and compute beliefs by Bayes' rule. Evidence investment affects charging only in B , so only that category receives the additional charging return in Appendix A-4. Finally, $V_P(\text{lenient}) \geq V_P(\text{strict})$ makes leniency optimal. ■

Proof of Proposition 4 Set $e_L = \min BR_L(1)$ and $e_H = \max BR_L(0)$. By condition (iii), $\Phi_L(e_L) > 0$ and $\Phi_L(e_H) < 0$. The prosecutor therefore charges weak files at e_L and declines them at e_H . Each effort level is a police best response to the corresponding charging rule, so $(1, e_L)$ and $(0, e_H)$ are fixed points supported by Bayesian beliefs. Condition (ii) and the strict signs imply $e_H > e_L$. ■

Proof of Proposition 7, part (i) Hold police behavior and beliefs fixed. Let $Q_i = \Pr(y = 1 \mid x = 1, i, L)$ and $W_i = (1 - \mu_i(L; \text{lenient}))q(0, L)$. Then

$$\Phi(i, L; \text{lenient}) = bQ_i - a(1 - Q_i) - \lambda W_i + \Delta_E(i, L; \text{lenient}).$$

Since $0 \leq Q_i \leq 1$ and $W_i \geq 0$, the return to charging weak files increases weakly with b and Δ_E and decreases weakly with a and λ . ■

The remaining comparative statics require more than these direct effects. Regime feasibility also depends on $V_P(\text{strict}) - V_P(\text{lenient})$, whose response depends on the outcomes induced under each standard. Identical charging incentives in both categories rule out opposite signs of Φ , but symmetric primitives need not imply identical behavior when equilibria are multiple. Finally,

the charging return to effort under screening is

$$v_i[\pi_i\alpha'_i(e_i) + (1 - \pi_i)\beta'_i(e_i)].$$

A larger gap $\alpha_i(e_i) - \beta_i(e_i)$ does not by itself raise this marginal return or establish a preference for strict screening.

Proof of the charging-rule comparisons in Proposition 8 A strict ranking of $V_P(\text{strict})$ and $V_P(\text{lenient})$ selects one standard, given the continuation equilibria used to compute these values. If strict is preferred, its commitment fixes the charging rule. Police behavior is also unique if the agency has a unique best response.

Under leniency, a strictly positive $\Phi(i, L; \text{lenient})$ at every relevant effort level makes broad charging the only best response in category i ; a strictly negative value makes selective charging the only best response. These signs give the charging patterns in parts (ii.a) and (ii.b). If $\Phi = 0$, either decision is optimal, so the weak inequalities in those parts do not establish uniqueness. Part (ii.c) follows from Proposition 4 under its maintained assumptions. ■

Proof of the conditional reallocation claim in Proposition 9 At an interior allocation, equation (1) gives

$$C'(r^*) = [\Pi_A - c(e_A)] - [\Pi_B - c(e_B)] - \eta(e_A - e_B).$$

The right-hand side is the marginal return to shifting cases toward A , net of effort costs and the demand on capacity. All terms are evaluated at the officers' best response to the allocation. Suppose switching to strict screening weakly raises this expression at every allocation, and each standard has a unique optimal allocation. The difference between the commissioner's payoffs under strict and lenient screening, after optimizing effort, is then weakly increasing in r , so the optimal allocation cannot shift away from A . The capacity term vanishes when the budget is slack. Changes in conviction returns and effort costs still enter the comparison. ■

Proof of Proposition 5 If the pre-reform fixed point remains an equilibrium and play stays there, charging behavior and effort are unchanged. A reform that changes payoffs while leaving the signal and conviction technologies unchanged therefore preserves outcome rates within the category. If the same holds in both categories and the allocation r is unchanged, aggregate rates are unchanged as well. Such reforms establish that changes in primitives need not change observed outcomes. ■

Proof of the fixed-point elimination claim in Proposition 6 Maintain the monotonicity and investment-ordering assumptions of Proposition 4 after reform. If $\Phi'_L(\max BR'_L(0)) > 0$, then $\Phi'_L(e) > 0$ throughout $BR'_L(0)$. No selective-charging fixed point survives. Investment ordering also places every effort in $BR'_L(1)$ weakly below $\max BR'_L(0)$, so broad charging is optimal at each police best response to it.

Conversely, if $\Phi'_L(\min BR'_L(1)) < 0$, then $\Phi'_L(e) < 0$ throughout $BR'_L(1)$. No broad-charging

fixed point survives. Investment ordering places every effort in $BR'_L(0)$ weakly above $\min BR'_L(1)$, so selective charging is optimal at each police best response to it. Each reform leaves one charging rule. The equilibrium is unique if the police best response to that rule is unique. Behavior must change from any pre-reform equilibrium using the eliminated charging rule. ■

A-2 Modeling choices

Object	Definition
$\sigma \in \{\text{strict}, \text{lenient}\}$	The prosecutor's evidentiary standard, chosen before cases arrive. It restricts admissible charging rules.
$r \in [0, 1]$	The share of cases the police agency allocates to category A ; $1 - r$ is the share in B .
$e_i \in [0, \bar{e}]$	Police evidence investment in category i . It affects the quality of the case file.
$\theta \in \{0, 1\}$	The unobserved legal state: $\theta = 1$ denotes guilt and $\theta = 0$ innocence.
$s \in \{H, L\}$	The evidentiary signal in the case file observed by the prosecutor.
$x \in \{0, 1\}$	The charging decision: $x = 1$ denotes charging and $x = 0$ declination.
$y \in \{0, 1\}$	The conviction outcome: $y = 1$ denotes conviction. A charged case with $y = 0$ fails to produce a conviction.

Table A-1: Key model objects and their roles

First, the prosecutor chooses a publicly observed evidentiary standard that restricts subsequent charging decisions. Corroboration requirements and supervisory approval rules provide institutional counterparts: they constrain which cases may be filed while leaving discretion within those bounds (Barkow 2019, Davis 2007). The binary specification captures the distinction between requiring a strong file and permitting weak files. It makes compliance observable and is sufficient to generate the coordination problem analyzed here.

Second, the prosecutor observes the case file but not the effort that produced it. She therefore evaluates the file using beliefs about police investment. This allows her to assess evidence quality without assuming she can monitor investigative effort.

Third, I hold the courtroom environment $q(\theta, s)$ fixed to focus on the interaction between police and prosecutors. Judicial responses to changes in charging or evidence production are outside the model.

Fourth, the commissioner sets priorities before officers choose effort. They share the agency's objective, but the investigative budget links their choices: allocating more cases to a category changes the capacity available for each case. The commissioner anticipates this response. The reallocation cost $C(r)$ separately makes concentration costly.

Fifth, I interpret the screening margin as applying to cases in which trial viability constrains charging. Cases that would resolve by plea regardless of the standard contribute to baseline outcomes.

Sixth, police produce evidence before the prosecutor reviews the file. Prosecutors can also request further investigation, but I leave that additional stage outside the model.

A-3 Comparative statics: parameter channels and regime uniqueness

Proposition 7 (Comparative statics of regime feasibility) *Holding other primitives fixed:*

- (i) *The set of parameter values satisfying $\Phi(i, L; \text{lenient}) \geq 0$ is weakly increasing in the electoral marginal incentive $\Delta_E(i, L; \text{lenient})$ and in the conviction benefit b , and weakly decreasing in the acquittal cost a and the wrongful-conviction cost λ .*
- (ii) *The set of primitives supporting the unscreened regime (Proposition 1) is therefore weakly increasing in electoral returns to visible charging and weakly decreasing in a and λ ; the set of primitives supporting the screened regime (Proposition 2) has the reverse monotonicity.*
- (iii) *The set of primitives supporting the selectively screened regime (Proposition 3) is weakly increasing in cross-category heterogeneity in the primitives $(\pi_i, \alpha_i(\cdot), \beta_i(\cdot), q(\cdot, \cdot))$ and vanishes under full symmetry across $i \in \{A, B\}$.*
- (iv) *For fixed electoral and cost parameters, increases in the diagnostic productivity of evidence—i.e., the gap $\alpha_i(e) - \beta_i(e)$ at the equilibrium investment level—and in courtroom sensitivity $q(1, L) - q(0, L)$ raise the return to screened charging through the v_i channel in Proposition 2, weakly expanding the set of primitives supporting screened enforcement.*

Electoral incentives and prosecution costs. At fixed police behavior, a larger electoral return $\Delta_E(i, L; \sigma)$ makes charging weak files more attractive. Higher acquittal costs a or wrongful-

conviction costs λ make it less attractive. These effects determine the prosecutor's treatment of a given file. The choice of a standard also depends on how police respond and on the resulting portfolio of outcomes.

Evidence and category differences. Under screening, police gain from investment that raises the probability of a strong file. That return depends on the marginal effects $\alpha'_i(e_i)$ and $\beta'_i(e_i)$. The prosecutor's response also depends on how the resulting signals change beliefs about guilt and the prospects of conviction. Selective screening requires these incentives to favor charging weak files in one category and declining them in the other.

Proposition 8 (Uniqueness of the equilibrium regime) *Suppose the primitives of the game satisfy the generic condition $V_P(\text{strict}) \neq V_P(\text{lenient})$.*

- (i) *If $V_P(\text{strict}) > V_P(\text{lenient})$, the screened regime of Proposition 2 is the unique PBE regime, and on-path play is invariant across PBE.*
- (ii) *If $V_P(\text{lenient}) > V_P(\text{strict})$, the regime played in equilibrium is determined in the lenient continuation game:*
 - (a) *if $\Phi(i, L; \text{lenient}) \geq 0$ for all $i \in \{A, B\}$ at every $e \in BR_L(0) \cup BR_L(1)$, the unscreened regime of Proposition 1 is the unique PBE regime;*
 - (b) *if, without loss of generality, $\Phi(A, L; \text{lenient}) \geq 0$ and $\Phi(B, L; \text{lenient}) < 0$ at every $e \in BR_L(0) \cup BR_L(1)$, the selectively screened regime of Proposition 3 is the unique PBE regime;*
 - (c) *if, in at least one category, the crossing condition of Proposition 4 holds, both the unscreened (or selective) and the high-investment/selective-charging fixed points are PBE-consistent, and multiplicity obtains within the lenient regime.*

A strict ranking of continuation values selects a standard. Under leniency, the remaining question is whether broad charging and selective charging each induce police investment that makes the charging rule optimal. Figure A-1 shows the two fixed points supported by the crossing condition.

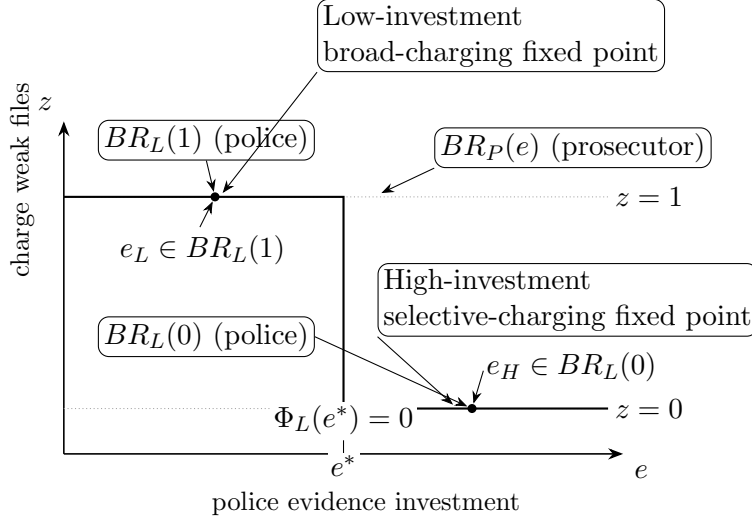


Figure A-1: Best responses under a lenient standard. Broad charging ($z = 1$) supports low police investment, and selective charging ($z = 0$) supports high investment. At each marked point, the charging rule and investment are mutual best responses.

A-4 Equilibrium allocation, effort, and reallocation

Given a charging rule, the commissioner chooses r anticipating the officers' optimal effort:

$$r^*(\sigma) \in \operatorname{argmax}_{r \in [0,1]} \{r[\Pi_A(\sigma) - c(e_A)] + (1-r)[\Pi_B(\sigma) - c(e_B)] - C(r)\}.$$

Effort is evaluated at the officers' best response to each candidate allocation. For a category receiving positive weight, an interior effort choice satisfies

$$v_i \frac{\partial \Pr(x = 1 \mid i)}{\partial e_i} + w_i \frac{\partial \Pr(y = 1 \mid i)}{\partial e_i} = c'(e_i) + \mu, \quad (4)$$

where $\mu \geq 0$ is the shadow price of capacity and

$$\mu[\bar{B} - re_A - (1-r)e_B] = 0.$$

At $e_i = 0$, the marginal return is weakly below marginal cost plus μ ; at $e_i = \bar{e}$, it is weakly above. These are necessary optimality conditions; uniqueness requires additional restrictions.

Unscreened charging. Every file is charged, so $\Pi_i = v_i + w_i \Pr(y = 1 \mid i)$. The charging derivative in equation (4) is zero. Investment pays only through convictions.

Screened charging. Only strong files are charged, so $\Pi_i = v_i \Pr(s = H \mid i, e_i) + w_i \Pr(y = 1 \mid$

i). The charging derivative is $\pi_i \alpha'_i(e_i) + (1 - \pi_i) \beta'_i(e_i)$. Investment therefore earns an additional return through charging.

Selective screening. Category *A* has the unscreened return and category *B* the screened return. Both face the capacity cost μ , but only *B* earns the charging return to effort. Comparing effort levels also requires comparing their evidence technologies and conviction returns.

Proposition 9 (Screening and police reallocation) *Holding police agency preferences fixed, a shift from a lenient to a strict evidentiary standard weakly increases agency priorities toward categories in which evidence investment more strongly raises the probability of charging. This holds exactly when the effort budget is slack; when it binds, it holds provided the shift in relative returns dominates the change in the budget's shadow-price term.*